IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS

Housing Authority of Clackamas County Plaintiff / Respondent v. Jane Kay Cortez, Benjamin Jay Barber, and All Other Occupants Defendants / Appellants	Circuit Court Case No: _____ Justice Court Case No: 26FE0586 **MOTION TO STAY JUDGMENT PENDING APPEAL** Circuit Court Appellate Stay and Undertaking Relief

Filed by: Jane Kay Cortez and Benjamin Jay Barber, Defendants/Appellants pro se

Property: 10043 SE 32nd Ave, Milwaukie, OR 97222

Defendants / Appellants Jane Kay Cortez and Benjamin Jay Barber move the Circuit Court, as the appellate court on appeal from Justice Court, for an order staying enforcement of any judgment for possession, judgment of restitution, notice of restitution, writ of execution, lockout, or eviction trespass notice pending appeal, and ask the Court to approve, waive, reduce, limit, or set the undertaking terms necessary to preserve possession while appellate review proceeds.

Relief Requested

1. Stay all enforcement of any April 22, 2026 possession judgment pending appeal.
2. Approve the attached undertaking, or waive, reduce, limit, or set the amount and terms of the undertaking under ORS 53.040.
3. If the Court requires a cash deposit, bond, or registry payment to perfect the stay, set the amount expressly, identify where it must be deposited, and allow a reasonable time after entry of the stay order for Defendants to make that deposit.
4. Alternatively, enter temporary appellate stay relief while the undertaking amount and terms are set.
5. Order that no writ, notice of restitution, lockout, or transfer of possession be enforced while the stay is in effect.

Stay Authority

6. This is an appeal from a civil judgment in Justice Court. Under ORS 53.020, the appeal lies to Clackamas County Circuit Court.
7. Under ORS 53.030, the notice of appeal is served on the adverse party and filed with the Justice Court, and when the notice has been served and filed the appellate court has jurisdiction of the cause.
8. Under ORS 53.040, the undertaking is filed with the justice within five days after the notice of appeal is given or filed, and the justice or the appellate court may waive, reduce, or limit the undertaking for good cause, including indigency, on just and equitable terms.

9. Under ORS 53.060, when an appeal is taken the justice states whether proceedings are stayed. The Justice Court denied stay relief, so Defendants now request that the Circuit Court, as the appellate court, grant stay relief and set equitable undertaking terms.
10. Under ORS 53.090, once the transcript and papers are filed with the clerk of the appellate court the appeal is perfected, and the action is then pending in circuit court for further proceedings.
11. Clackamas County Justice Court's current appeal instructions direct litigants to file the notice of appeal with the Justice Court, which then notifies the Circuit Court.

Why A Stay Should Enter

12. This appeal is taken in good faith, not for delay. Defendants immediately prepared post-judgment filings after discovering the missed April 22, 2026 hearing.
13. The underlying possession judgment is challenged as void or unenforceable because it awarded present possession in conflict with controlling federal law governing HACC's displacement and relocation duties.
14. Under 42 U.S.C. 1437p(a)(4) and 24 C.F.R. 970.21, HACC may not complete a disposition-driven displacement process until residents are relocated, must provide comparable housing, must provide counseling and relocation expenses, and tenant-based assistance does not count as comparable housing until the family is actually relocated into such housing.
15. 24 C.F.R. 972.130 requires a conversion plan to describe, among other things, how residents will be assisted through tenant-based assistance and related relocation components; where voucher assistance is the chosen path, Defendants contend federal law required voucher assistance to be provided at least 90 days before displacement or transfer of possession.
16. Exhibit A is the voucher provided by HACC. The voucher form lists an issue date of March 19, 2026 and shows signatures dated March 20, 2026. On Defendants' calculation, any displacement or transfer of possession before at least June 17, 2026 from the issue date, or before at least June 18, 2026 from the signed/provided date, would be inconsistent with the 90-day federal relocation timetable.
17. As a matter of law and fact, HACC should not have been pursuing state-court eviction while the voucher-porting relocation process was still underway, and should not have sought possession only about 10 days after granting the voucher.
18. Exhibit B, the April 22, 2026 orientation registration record, further shows that the household was still engaged in relocation-related orientation and porting activity on the same date as the missed court appearance, not at the end of a completed relocation process.
19. The federal relocation rules require actual relocation protections and time for voucher-based relocation to occur. A housing authority cannot short-circuit that process by issuing a voucher, leaving the family in the middle of porting and housing search activity, and then almost immediately pursuing restitution in state court.
20. Irreparable injury will occur if stay relief is denied. Defendant Jane Cortez is elderly at 73 years old, approximately four feet six inches tall, has cognitive disorder, and has mobility impairment. Abrupt eviction or lockout before the voucher can be ported and before she has enough time to move safely to Multnomah County would create a serious risk of immediate physical dislocation, medical destabilization, and loss of the very relocation opportunity federal law was intended to protect.
21. Because the judgment is challenged as void or unenforceable and because Defendants are disabled occupants facing immediate loss of housing, the Court should not require an undefined immediate deposit before entering temporary stay relief. If a deposit is required, the amount should be set in a specific order and payment should be due only after notice of the amount and a reasonable compliance period.

22. The harm from denying a stay is extraordinary: loss of home, lockout, disruption of relocation and voucher rights, and destruction of the status quo before appellate review of the federal-preemption and void-judgment issues can occur.
23. The harm to Plaintiff from a stay can be addressed by undertaking terms preserving the premises and securing the value of use and occupation during the appeal.

Conclusion

Defendants respectfully request that the Circuit Court enter an immediate stay pending appeal, approve or promptly set equitable undertaking terms, and grant any further order necessary to preserve possession until the appeal and the federal defenses can be resolved lawfully.

DATED: April ___, 2026.

Respectfully submitted,

_____ _____

Benjamin Jay Barber, Defendant/Appellant pro se Jane Kay Cortez, Defendant/Appellant pro se

PROPOSED SUPERSEDEAS UNDERTAKING

Defendants / Appellants Jane Kay Cortez and Benjamin Jay Barber submit this proposed undertaking under ORS 53.040, subject to approval, waiver, reduction, limitation, or modification by the Circuit Court.

1. Appellants will not commit waste or allow waste to be committed on the premises located at 10043 SE 32nd Ave, Milwaukie, OR 97222 while they remain in possession during appeal.
2. If the judgment is affirmed, Appellants will pay the value of use and occupation of the premises during the period of possession in the amount stated below, or in such amount as the Court sets by order.
3. Stated value of use and occupation for purposes of appellate stay terms: $_____ per month, subject to the Court's approval, reduction, limitation, or modification.
4. If the Court requires deposit of money into the court registry or filing of a bond, Appellants request that the order specify the exact amount, payee or registry, deadline, and any installment or other payment terms.
5. Appellants request that the Court approve this undertaking as filed or set a different amount and temporary stay terms that preserve the status quo pending appeal.

DATED: April ___, 2026.

_____ _____

Benjamin Jay Barber, Appellant Jane Kay Cortez, Appellant

PROPOSED CIRCUIT COURT ORDER STAYING JUDGMENT PENDING APPEAL

Circuit Court Case No: _____ Justice Court Case No: 26FE0586

The Court has considered Defendants' Motion to Stay Judgment Pending Appeal after Justice Court denial of stay relief, together with the proposed undertaking.

IT IS ORDERED:

[ ] Enforcement of any judgment for possession, notice of restitution, writ of execution, lockout, or eviction trespass notice is stayed pending appeal.

[ ] The undertaking is approved as filed.

[ ] The value of use and occupation for purposes of ORS 19.335(2) is set at $_____ per month.

[ ] Any required deposit into the court registry / bond amount is set at $_____ and shall be deposited by _____, 2026.

[ ] Appellants shall not commit or allow waste while they remain in possession during appeal.

[ ] The Circuit Court waives / reduces / limits the undertaking under ORS 53.040 on the terms stated above.

[ ] Other: _____

DATED: _____, 2026.

_____

Judge

CERTIFICATE OF SERVICE

I certify that on April ___, 2026, I served a true copy of this Motion to Stay Judgment Pending Appeal, proposed supersedeas undertaking, and exhibits on Plaintiff Housing Authority of Clackamas County.

[ ] First-class mail to: Housing Authority of Clackamas County, 13930 S Gain St, Oregon City, OR 97045.

[ ] Email to: cskee@clackamas.us.

[ ] Hand delivery.

[ ] Other: _____

_____ _____

Benjamin Jay Barber Jane Kay Cortez

EXHIBIT A

HACC Voucher Issued 03/19/2026 and Signed 03/20/2026

Voucher exhibit relied on for the 90-day displacement argument.

MAR 2 4 2026

Voucher

Housing Choice Voucher Program

U.S. Department of Housing and Urban Development

OMB No. 2577-0169
(exp. 04/30/2026)

Office of Public and Indian Housing

OMB Burden Statement: The public reporting burden for this information collection is estimated to be up to 0.05 hours, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. This collection of information is required for participation in the housing choice voucher program. Assurances of confidentiality are not provided under this collection. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions to reduce this burden, to the Office of Public and Indian Housing, US. Department of Housing and Urban Development, Washington, DC 20410. HUD may not conduct and sponsor, and a person is not required to respond to, a collection of information unless the collection displays a valid control number.

Privacy Act Statement. The Department of Housing and Urban Development (HUD) is authorized to collect the information on this form by 24 CFR § 982.302. The information is used to authorize a family to look for an eligible unit and specifies the size of the unit. The information also sets forth the family's obligations under the Housing Choice Voucher Program. The Personally Identifiable Information (PII) data collected on this form are not stored or retrieved within a system of record.

Please read **entire** document before completing form Fill in all blanks below. Type or print clearly.	Voucher Number t0021264
1. Insert **unit size** in number of bedrooms. (This is the number of bedrooms for which the Family qualifies, and is used in determining the amount of assistance to be paid on behalf of the Family to the owner.)	1. Unit Size 1
2. **Date Voucher Issued (mm/dd/yyyy)** Insert actual date the Voucher is issued to the Family.	2. Issue Date (mm/dd/yyyy) 03/19/2026
3. **Date Voucher Expires (mm/dd/yyyy)** must be at least sixty days after date Voucher is issued. (See Section 6 of this form.)	3. Expiration Date (mm/dd/yyyy) 07/17/2026
4. **Date Extension Expires** (if applicable)(mm/dd/yyyy) (See Section 6. of this form)	4. Date Extension Expires (mm/dd/yyyy)

5. Name of Family Representative	6. Signature of Family Representative	Date Signed (mm/dd/yyyy)
Jane Cortez	Jane Kay Cortez	3-20-26

7. Name of Public Housing Agency (PHA)
Housing Authority of Clackamas County

8. Name and Title of PHA Official	9. Signature of PHA Official	Date Signed (mm/dd/yyyy)
Ashley Ferron, PPRA Sr.		03/20/2026

MAR 2 4 2026

1. Housing Choice Voucher Program

A. The public housing agency (PHA) has determined that the above named family (item 5) is eligible to participate in the housing choice voucher program. Under this program, the family chooses a decent, safe and sanitary unit to live in. If the owner agrees to lease the unit to the family under the housing choice voucher program, and if the PHA approves the unit, the PHA will enter into a housing assistance payments (HAP) contract with the owner to make monthly payments to the owner to help the family pay the rent.

B. The PHA determines the amount of the monthly housing assistance payment to be paid to the owner. Generally, the monthly housing assistance payment by the PHA is the difference between the applicable payment standard and 30 percent of monthly adjusted family income. In determine the maximum initial housing assistance payment for the family, the PHA will use the payment standard in effect on the date the tenancy is approved by the PHA. The family may choose to rent a unit for more than the payment standard, but this choice does not change the amount of the PHA's assistance payment. The actual amount of the PHA's assistance payment will be determined using the gross rent for the unit selected by the family.

2. Voucher

A. When issuing this voucher the PHA expects that if the family finds an approval unit, the PHA will have the money available to enter into a HAP contract with the owner. However, the PHA is under no obligation to the family, to any owner, or to any other person, to approve a tenancy. The PHA does not have any liability to any party by the issuance of this voucher.

B. The voucher does not give the family any right to participate in the PHA's housing choice voucher program. The family becomes participant in the PHA's housing choice voucher program when the HAP contract between the PHA and the owner takes effect.

C. During the initial or any extended term of this voucher, the PHA may require the family to report progress in leasing a unit at such intervals and times as determined by the PHA.

3. PHA Approval or Disapproval of Unit or Lease

A. When the family finds a suitable unit where the owner is willing to participate in the program, the family must give the PHA the request for tenancy approval (of the form supplied by the PHA), signed by the owner and the family, and a copy of the lease, including the HUD-prescribed tenancy addendum. **Note: Both documents must be given to the PHA no later than the expiration date stated in item 3 or 4 on top of page one of this voucher.**

B. The family must submit these documents in the manner that is required by the PHA. PHA policy may prohibit the family from submitting more than one request for tenancy approval at a time.

C. The lease must include, word-for-word, all provisions of the tenancy addendum required by HUD and supplied by the PHA. This is done by adding the HUD tenancy addendum to the lease used by the owner. If there is a difference between any provisions of the HUD tenancy addendum and any provisions of the owner's lease, the provision of the HUD tenancy addendum shall control.

D. After receiving the request for tenancy approval and a copy of the lease, the PHA will inspect the unit. The PHA may not give approval for the family to lease the unit or execute the HAP contract until the PHA has determined that all the following program requirements are met: the unit is eligible; the unit has been inspected by the PHA and passes the housing quality standards (HQS); the rent is reasonable; and the landlord and tenant have executed the lease including the HUD-prescribed tenancy addendum.

E. If the PHA approves the unit, the PHA will notify the family and the owner, and will furnish two copies of the HAP contract to the owner.
   1. The owner and the family must execute the lease.
   2. The owner must sign both copies of the HAP contract and must furnish to the PHA a copy of the executed lease and both copies of the executed HAP contract.
   3. The PHA will execute the HAP contract and return an executed copy to the owner.

F. If the PHA determined that the unit or lease cannot be approved for any reason, the PHA will notify the owner and the family that:
   1. The proposed unit or lease is disapproved for specified reasons, and
   2. If the conditions requiring disapproval are remedied to the satisfaction of the PHA on or before the date specified by the PHA, the unit or lease will be approved.

4. Obligations of the Family

A. When the family's unit is approved and the HAP contract is executed, the family must follow the rules listed below in order to continue participating in the housing choice voucher program.

B. The family must:
   1. Supply any information that the PHA or HUD determined to be necessary including evidence of citizenship or eligible immigration status, and information for use in a regularly schedule reexamination or interim reexamination of family income and composition.

MAR 2 4 2026

2. Disclose and verify social security numbers and sign and submit consent forms for obtaining information.
3. Supply any information requested by the PHA to verify that the family is living in the unit or information related to family absence from the unit.
4. Promptly notify the PHA in writing when the family is away from the unit for an extended period of time in accordance with PHA policies.
5. Allow the PHA to inspect the unit at reasonable times and after reasonable notice.
6. Notify the PHA and the owner in writing before moving out of the unit or terminating the lease.
7. Use the assisted unit for residence by the family. The unit must be the family's only residence.
8. Promptly notify the PHA in writing of the birth, adopting, or court-awarded custody of a child.
9. Request PHA written approval to add any other family member as an occupant of the unit.
10. Promptly notify the PHA in writing if any family member no longer lives in the unit. Give the PHA a copy of any owner eviction notice.
11. Pay utility bills and provide and maintain any appliances that the owner is not required to provide under the lease.

C. Any information the family supplies must be true and complete.

D. The family (including each family member) must not:
1. Own or have any interest in the unit (other than in a cooperative, or the owner of a manufactured home leasing a manufactured home space).
2. Commit any serious or repeated violation of the lease.
3. Commit fraud, bribery or any other corrupt or criminal act in connection with the program.
4. Engage in drug-related criminal activity or violent criminal activity or other criminal activity that threatens the health, safety or right to peaceful enjoyment of other residents and persons residing in the immediate vicinity of the premises.
5. Sublease or let the unit or assign the lease or transfer the unit.
6. Receive housing choice voucher program housing assistance while receiving another housing subsidy, for the same unit or a different unit under any other Federal, State, or local housing assistance program.
7. Damage the unit or premises (other than damage from ordinary wear and tear) or permit any guest to damage the unit or premises.
8. Receive housing choice voucher program housing assistance while residing in a unit owned by a parent, child, grandparent, grandchild, sister, or brother of any member of the family, unless the PHA has determined (and has notified the owner and the family of such determination) that approving rental of the unit, notwithstanding such relationship, would provide reasonable accommodation for a family member who is a person with disabilities.
9. Engage in abuse of alcohol in a way that threatens the health, safety or right to peaceful enjoyment of the other residents and persons residing in the immediate vicinity of the premises.

5. Illegal Discrimination

If the family has reason to believe that, in its search for suitable housing, it has been discriminated against on the basis of age, race, color, religion, sex (including sexual orientation and gender identity), disability, national origin, or familial status, the family may file a housing discrimination complaint with any HUD Field Office in person, by mail, or by telephone. The PHA will give the family information on how to fill out and file a complaint.

6. Expiration and Extension of Voucher

The voucher will expire on the date stated in item 3 on the top of page one of the voucher unless the family requests an extension in writing and the PHA grants a written extension of the voucher in which case the voucher will expire on the date stated in item 4. At its discretion, the PHA may grant a family's request for one or more extensions of the initial term.

If the family needs and requests an extension of the initial voucher term as a reasonable accommodation, in accordance with part 8 of this title, to make the program accessible to a family member who is a person with disabilities, the PHA must extend the voucher term up to the term reasonably required for that purpose.

EXHIBIT B

April 22, 2026 Orientation Registration Email / PDF

Orientation record supporting the April 22 timing-confusion and housing-process context.

Gmail

benjamin barber <starworks5@gmail.com>

Orientation Registration - Cortez - 04/22/2026 @10AM

10 messages

Ashley Glass <Ashley.Glass@homeforward.org> Tue, Apr 14, 2026 at 1:02 PM
To: "starworks5@gmail.com" <starworks5@gmail.com>

Hello,

You link to register for the orientation is below. Your orientation is scheduled for 04/22/2026 at 10AM. I am mailing out your orientation packet today, please confirm your mailing address.

Wednesday, April 22 at 10 AM - Cortez

-

Thank you,

Ashley Glass

Rent Assistance Services Coordinator

homeforward

135 SW Ash Street

Portland, Oregon 97204

tel: 503.802.8315

fax: 503.802.8330

tty: 503.802.8554

web: www.homeforward.org

Extensions must be submitted in writing before the voucher expires.

Reporting household changes must be in writing. Forms are available on Home Forward's website. On the homepage, enter keywords: Housing program>housing choice voucher>participant>household changes. You can also request to have the forms mailed to you.

You can pick up forms or drop off packets at our customer service window.

The customer service window is open Tuesday – Thursday from 9:00AM – noon and 1:00PM - 3:00PM at 135 SW Ash Street

Confidentiality Notice: This communication may contain privileged or other confidential information exempt from disclosure. If you are not the intended recipient, you may not use, copy, disseminate or retain this message. Please delete the copy you received and alert the sender to the transmission error. Thank you.

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benjamin barber <starworks5@gmail.com> Tue, Apr 14, 2026 at 1:04 PM
To: Ashley Glass <Ashley.Glass@homeforward.org>

my mailing address is 10043 SE 32nd Ave, Milwaukie, OR 97222
[Quoted text hidden]

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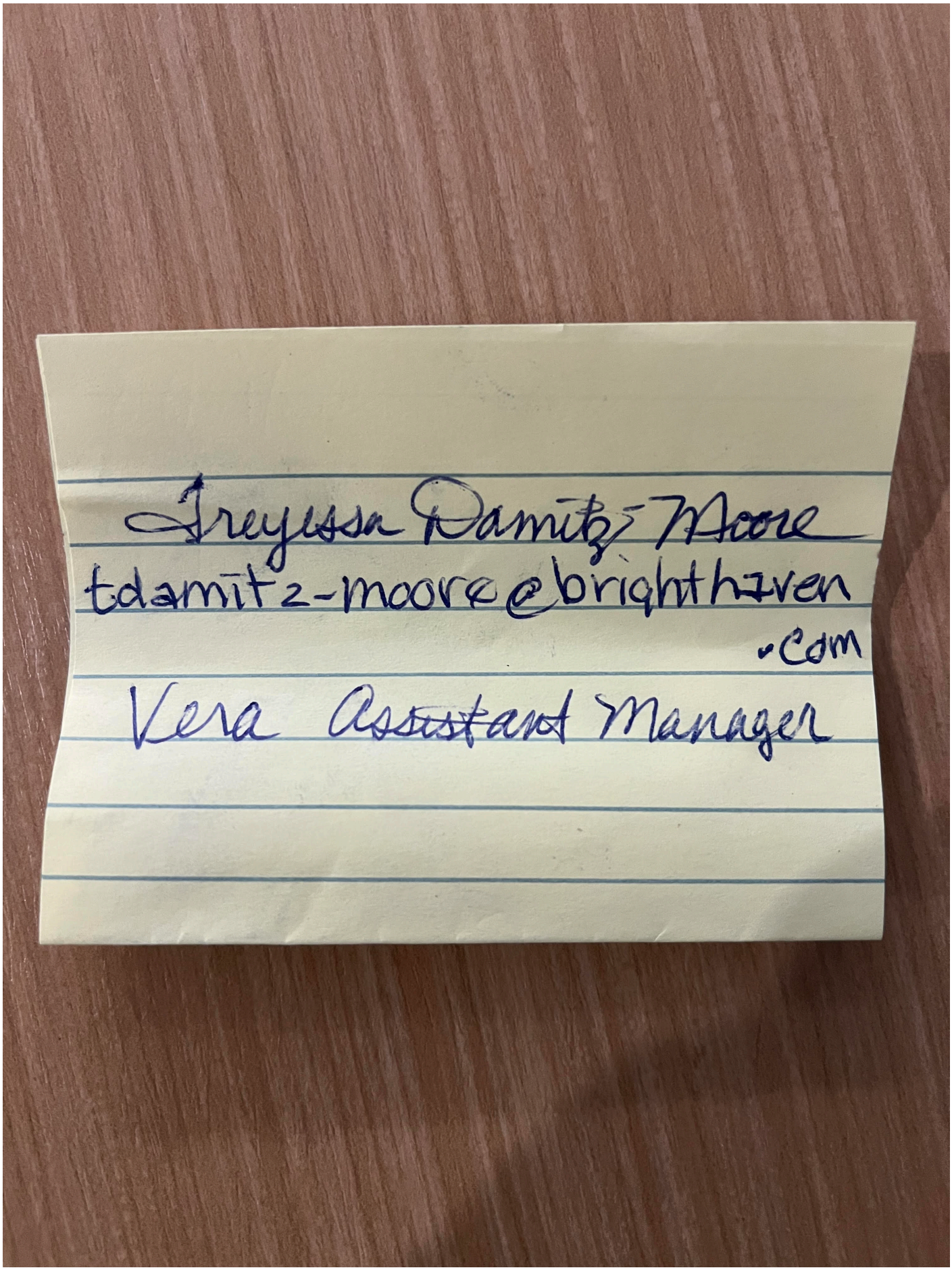
benjamin barber <starworks5@gmail.com> Tue, Apr 21, 2026 at 2:43 PM
To: Ashley Glass <Ashley.Glass@homeforward.org>, "Tilton, Kati" <ktilton@clackamas.us>, "Ciecko, Scott" <SCiecko@clackamas.us>, "Skee, Charley" <CSkee@clackamas.us>, "Anderson, Laura" <LAnderson2@clackamas.us>

I have an eviction court scheduled for that same time at the Clackamas county justice court where I have submitted a motion to dismiss for failure to obey federal law and give me 90 days from the issuance of a voucher to file an eviction. Otherwise the staff at the Vera want you to contact them to get us moved there. Please thank Clackamas county for being retarded and wasting everyone’s time



On Tue, Apr 14, 2026 at 1:02 PM Ashley Glass <Ashley.Glass@homeforward.org> wrote:

[Quoted text hidden]

Ashley Glass <Ashley.Glass@homeforward.org> Tue, Apr 21, 2026 at 2:46 PM
To: benjamin barber <starworks5@gmail.com>

Hello,

Are you saying your court was scheduled the same time orientation is?

Also, you just need to give the Vera the RFTA and lead paint disclosure. I don't do anything with the property until I receive the voucher and lead paint receipt from Jane and the RFTA and Lead paint disclosure from the property.

Ashley Glass

Rent Assistance Services Coordinator

503-802-8315

homeforward

If you need to report any household or income changes, you can download documents from the participant portal at

https://portal.homeforward.org/Forms/Participant

You can pick up forms or drop off packets at our customer service window.

The customer service window is open Tuesday – Thursday from 9:00AM – noon and 1:00PM - 3:00PM at 135 SW Ash Street

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From: benjamin barber <starworks5@gmail.com>
Sent: Tuesday, April 21, 2026 2:43 PM
To: Ashley Glass <Ashley.Glass@homeforward.org>; Tilton, Kati <ktilton@clackamas.us>; Ciecko, Scott <SCiecko@clackamas.us>; Skee, Charley <CSkee@clackamas.us>; Anderson, Laura <LAnderson2@clackamas.us>
Subject: Re: Orientation Registration - Cortez - 04/22/2026 @10AM

🛑 CAUTION: This email is NOT from a Home Forward email address. Do NOT click links or open attachments unless you recognize the sender and know the content is safe. Home Forward does NOT have a "Safe Sender" list. :CAUTION 🛑

[Quoted text hidden]

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benjamin barber <starworks5@gmail.com> Tue, Apr 21, 2026 at 2:47 PM
To: Ashley Glass <Ashley.Glass@homeforward.org>

Yes
[Quoted text hidden]

Ashley Glass <Ashley.Glass@homeforward.org> Tue, Apr 21, 2026 at 2:52 PM
To: benjamin barber <starworks5@gmail.com>

Hello,

I can reschedule orientation for 04/24/2026 at 1PM, it will be a over the phone orientation – not with me.

Does that date and time work for you and Jane?

[Quoted text hidden]

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benjamin barber <starworks5@gmail.com> Tue, Apr 21, 2026 at 2:52 PM
To: Ashley Glass <Ashley.Glass@homeforward.org>

yes
[Quoted text hidden]

Ashley Glass <Ashley.Glass@homeforward.org> Tue, Apr 21, 2026 at 3:10 PM
To: benjamin barber <starworks5@gmail.com>

Hello,

Your orientation is scheduled for 04/24/2026 at 1PM. You'll receive an email regarding the orientation before 1PM 04/24/2026.

Thank you,

Ashley Glass

Rent Assistance Services Coordinator

503-802-8315

[Quoted text hidden]
[Quoted text hidden]

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benjamin barber <starworks5@gmail.com> Wed, Apr 22, 2026 at 9:50 AM
Draft To: Ashley Glass <Ashley.Glass@homeforward.org>

[Quoted text hidden]

Ashley Glass <Ashley.Glass@homeforward.org> Wed, Apr 22, 2026 at 9:53 AM
To: benjamin barber <starworks5@gmail.com>

Hello,

Wednesday, April 22 at 10 AM - Cortez

Thank you,

Ashley Glass

Rent Assistance Services Coordinator

503-802-8315

[Quoted text hidden]
[Quoted text hidden]

EXHIBIT C

42 U.S.C. 1437p

Official statutory authority on demolition/disposition, displacement notice, comparable housing, and relocation.

EXHIBIT C

42 U.S.C. 1437p - Demolition and disposition of public housing

Source: U.S. House Office of the Law Revision Counsel, https://uscode.house.gov/view.xhtml?req=(title:42 section:1437p edition:prelim)

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42 U.S.C. 1437p(a)(4) provides, in relevant part:

(A) the public housing agency will notify each family residing in a project subject to demolition or disposition 90 days prior to the displacement date;
(ii) the demolition of the building in which the family resides will not commence until each resident of the building is relocated; and
(iii) each family displaced by such action will be offered comparable housing;
(III)(aa) tenant-based assistance, except that the comparable housing requirement is fulfilled by tenant-based assistance only upon the relocation of such family into such housing;
(B) the agency will provide for the payment of the actual and reasonable relocation expenses of each resident to be displaced;
(C) the agency will ensure that each displaced resident is offered comparable housing in accordance with the notice;
(D) the agency will provide any necessary counseling for residents who are displaced; and
(E) the agency will not commence demolition or complete disposition until all residents residing in the building are relocated.

EXHIBIT D

24 C.F.R. 970.21

Official regulation on relocation of residents in demolition/disposition cases.

EXHIBIT D

24 C.F.R. 970.21 - Relocation of residents

Source: eCFR, current text, and govinfo published CFR reference,
https://www.ecfr.gov/current/title-24/subtitle-B/chapter-IX/part-970/section-970.21

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24 C.F.R. 970.21(a) provides, in relevant part:
A PHA must offer each family displaced by demolition or disposition comparable housing that meets housing quality standards and is located in an area generally not less desirable than the location of the displaced persons.
Tenant-based assistance will not be considered comparable housing until the family is actually relocated into such housing.
A PHA may not complete disposition of a building until all tenants residing in the building are relocated.

24 C.F.R. 970.21(e) provides, in relevant part:
The PHA is responsible for notifying each family residing in the development 90 days prior to the displacement date.
The notice must state that demolition of the building will not commence until each resident has been relocated.
The notice must state that each family displaced by such action will be provided comparable housing.
The PHA must provide for payment of actual and reasonable relocation expenses.
The PHA must ensure each displaced resident is offered comparable replacement housing and provide any necessary counseling for residents that are displaced.

EXHIBIT E

24 C.F.R. 972.130

Official regulation excerpt concerning voucher timing and notice in conversion/relocation context.

EXHIBIT E

24 C.F.R. 972.130(b)(4) - Written notice and voucher timing

Source: govinfo published CFR, Title 24 Part 972 (most recent official PDF),
https://www.govinfo.gov/link/cfr/24/972?link-type=pdf&year=mostrecent

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24 C.F.R. 972.130(b)(4) provides, in relevant part:
(i) Timing of notice. If the required conversion is not subject to the URA, the notice shall be provided to families at least 90 days before displacement.
(ii) Contents of notice. The written notice shall include all of the following:
(B) The family will be offered comparable housing, which may include tenant-based or project-based assistance, or occupancy in a unit operated or assisted by the PHA, and if tenant-based assistance is used, the comparable housing requirement is fulfilled only upon relocation of the family into such housing.
(C) Any necessary counseling with respect to the relocation will be provided.
(D) Such families will be relocated to other decent, safe, sanitary, and affordable housing that is, to the maximum extent possible, housing of their choice.
(F) Where Section 8 voucher assistance is being used for relocation, the family will be provided with the vouchers at least 90 days before displacement.